declaration that Mr. Valinedi did not actually receive the Notices does not negate Defendants' evidence of proper service.

In addition to the above, Defendants present evidence that the Plaintiffs waived any claims regarding notice when they entered the Forbearance Agreement. (Bruetsch Decl. Ex. 2 at p. 2.) Written releases "are binding on the signatories and enforceable so long as they are … 'clear, explicit and comprehensible in each [of their] essential details." (*Skrbina v. Fleming Cos.* (1996) 45 Cal.App.4th 1353, 1368 quoting *Powers v. Superior Court* (1987) 196 Cal.App.3d 318, 320.)

Based on the above, Plaintiffs have failed to establish their burden to show that they will more likely than not prevail on the alleged property claims, however they are titled.

Based on the above, Defendants' motion to expunge the lis pendens is **granted**.

Attorney Fees

California Code of Civil Procedure section 405.38 provides:

> The court shall direct that the party prevailing on [a motion to expunge a lis pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Defendants request attorney fees in the amount of $4,150.00 based on their time spent preparing the initial motion. In their moving papers, they note they expect to spend another 5 hours reviewing the opposition and preparing a reply, and 2 hours preparing for and arguing the motion. However, they limit the time they are actually seeking be awarded to the initial 8.3 hours spent on the initial motion – not any time spent on the reply and argument. They indicate their rate is $500 per hour.

Plaintiffs do not oppose or even address this request in their opposition.

The Court finds that Defendants are the prevailing party as their motion is being granted. The Court also finds that Defendant's request for attorney's fees is reasonable. As such, the Court awards Defendant $4,150 in attorney's fees.

Conclusion

Defendants' motion to expunge the lis pendens is **granted**. As the prevailing party, Defendants are awarded $4,150 in attorneys' fees, payable within 30 days of entry of this order.

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11. 9:00 AM CASE NUMBER: C25-01017
CASE NAME: STEVEN KENT VS. RICHARD KENT
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: KENT, STEVEN JAMES
TENTATIVE RULING:*

This hearing is moot and is **vacated**. The Parties submitted a Stipulation and Proposed Order to grant Plaintiff Steven James Kent leave to amend to file a Second Amended Complaint. The Court approved and executed this order on December 30, 2025. No appearance is required on January 21, 2026.

12. 9:00 AM CASE NUMBER: C25-01325
CASE NAME: FRUTOS LA AGUADA S.A. VS. EDUARDO RAMIREZ
HEARING ON DEMURRER TO: RE CAUSES OF ACTIONS 7-8 RE 1ST AMENDED COMPLAINT
FILED BY: THE FRESH CONNECTION, LLC
TENTATIVE RULING:*

Before the Court is a demurrer by defendant The Fresh Connection, LLC to the seventh and eighth causes of action of Plaintiff's first amended complaint. For the reasons set forth, the general demurrers to the seventh and eighth causes of action are **sustained, with leave to amend**.

Background

In the operative first amended complaint ("FAC"), Plaintiff Frutos La Aguada S.A., a Chilean company, alleges it sold over $445,000 worth of cherries on consignment to defendant The Fresh Connection, LLC ("TFC") for which it has not received payment. (FAC ¶¶ 3, 4, 11-13, 16-19 and Exhs. 1, 2.) Plaintiff's FAC alleges eight causes of action, including claims for breach of contract and other causes of action directed to the recovery of the value of the cherries provided by Plaintiff and the alleged agreement between Plaintiff and TFC. (FAC 1st-6th C/As.) Plaintiff also alleges a seventh cause of action for intentional misrepresentation and an eighth cause of action for negligent misrepresentation, the causes of action to which TFC demurs. The Court addresses the allegations specific to the seventh and eighth causes of action in more detail below.

Legal Standards for Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]; *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact."].) In determining whether the FAC states a claim for relief, the Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss v. County of Alameda, supra,* 242 Cal.App.4th at 123.) In determining whether the complaint states a cause of action, the Court evaluates "whether a cause of action has been stated under any legal theory. [Citation omitted.]" (*Gomez v. Regents of University of California* (2021) 63 Cal.App.5th 386, 391.) (*See also Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39.)

Note on Federal Authorities

Decisions of the federal courts other than the U.S. Supreme Court, whether published or not, are at most persuasive, nonbinding authority on matters of California substantive and procedural law. (*T.H. v. Novartis Pharmaceuticals Corp.* (2017) 4 Cal.5th 145, 175; *Beverage v. Apple, Inc.* (2024) 101 Cal.App.5th 736, 756, fn. 6.) The Court is bound to follow controlling published California case authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455-456; *ZF Micro Devices, Inc. v. TAT Capital Partners, Ltd.* (2016) 5 Cal.App.5th 69, 92.)

The federal case cited by TFC addressing the fraud pleading standard under the Federal Rules of Civil

Procedure (MPA ISO Dem. p. 4, ll. 20-24) did not address a fraud cause of action but held the Rule 9 pleading standards did not apply to the breach of fiduciary duty claim alleged in that case. (*Concha v. London* (9th Cir. 1995) 62 F.3d 1493, 1502-1503.) *Giles v. General Motors Acceptance Corp.* (9th Cir. 2007) 494 F.3d 865 cited by TFC on the economic loss doctrine applied Nevada law.

<u>Analysis</u>

A. <u>Legal Framework and Elements of Intentional and Negligent Misrepresentation Claims</u>

Civil Code section 1710 defines deceit. It includes "[t]he suggestion, as a fact, of that which is not true, by one who does not believe it to be true," "t]he assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true" or "[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact." (Civ. Code § 1710, subd. 1, 2, and 3.)

1. <u>Specificity Requirement</u>

The elements of a cause of action for deceit are " '(a) misrepresentation (<u>false representation, concealment, or nondisclosure</u>); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [emphasis added].) Fraud must be pled with specificity, which requires a plaintiff to plead "facts" which show how, when, where, to whom, and by what means the representations were tendered. [Citations and internal quotation marks omitted.]" (*Id.* at 645.) Fraud claims against a corporate defendant require a plaintiff to allege the names of the persons who made the misrepresentations, their authority to speak for the corporate entity, who they spoke to, what they said or wrote, and when they said or wrote it. (*Id.*)

The specificity standard takes into account the difference between a claim based on affirmative misrepresentations and one based on concealment. (*Alfaro v. Community Housing Improvement System and Plannin*g Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384 ["[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' "].) In addition, less specificity is required where the defendant would likely have more knowledge than the plaintiff. (*See also Chapman v. Skype, Inc.* (2013) 220 Cal.App.4th 217, 231 [cited in *Cisco Systems, Inc. v. STMIcroelectronics, Inc.* (N.D. Cal. 2014 77 F. Supp.3d 887, 897 cited by defendant].)

2. <u>False Promise</u>

TFC characterizes Plaintiff's claim for deceit in the seventh cause of action as a claim for promissory fraud. That characterization may not be accurate based on the allegations of the FAC, as explained below. Nevertheless, the Court in *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039 stated the elements of a false promise claim: " 'the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false. [Citation omitted.]" (*Id.* at 1060.) To state a claim for intentional misrepresentation based on a promise made without intent to perform, cross-complainants must allege circumstances that support an inference of a contemporaneous intention not to perform when the promise is made, to differentiate the alleged false promise from a simple breach of contract. (*Tenzer v. Superscope, Inc.*

(1985) 39 Cal.3d 18, 30.) (*See also Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.* (2013) 55 Cal. 4th 1169, 1183 ["Here, as in *Tenzer*, we stress that the intent element of promissory fraud entails more than proof of an unkept promise or mere failure of performance."].)

3. Concealment/Non-Disclosure and Fraudulent Inducement

Deceit can also consist of concealment or failure to disclose material facts. (*Lazar, supra,* 12 Cal.4th at 638; Civ. Code § 1710, subd. 3 [defining "deceit"].) "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 311.) "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation omitted.]" (*Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 606.) (*See also Bigler-Engler, supra,* 7 Cal.App.5th at 310-311.)

B. Application to Seventh Cause of Action

TFC argues the seventh cause of action alleges promissory fraud; i.e., that TFC made a false promise by agreeing to buy and pay for the cherries ordered in the invoices attached to the FAC but made that promise without an actual intent to pay. The Court does not read the FAC as alleging promissory fraud. Liberally construing the allegations and considering whether the facts alleged state a cause of action under any legal theory, even if not as labeled by the plaintiff, the allegations may more properly be construed as intentional misrepresentation claim based on fraudulent inducement or fraudulent concealment/nondisclosure regarding Ramirez's and GPS' relationship with TFC. The issue is whether Plaintiff has alleged the claim with specificity as required under *Lazar*.

1. Plaintiff's Allegations Supporting the Cause of Action

Plaintiff alleges Ramirez acted as Plaintiff's contact with TFC, and on information and belief, that Ramirez is an employee or agent of TFC and GPS, held himself out as TFC's agent or employee, and was acting for the benefit of TFC and GPS. (FAC ¶ 14.) Plaintiff alleges it sent fresh cherries to TFC during the 2023-2024 cherry season and identifies a series of invoices reflecting the shipments dating from January 31, 2024 to February 25, 2024. (FAC ¶ 16.) Plaintiff alleges during the course of performance, Plaintiff's representative Jorge Gonzalez communicated with TFC's quality and procurement manager Ivan Covacevich. (FAC ¶ 20.) Exhibit 4 appears to be a list by date that includes names, including Covacevich, on several pages, which Plaintiff alleges show Covacevich's visits to the Frutizano plant in Chilen. (FAC ¶ 20 and Exh. 4.)

Plaintiff attaches What's App messages exchanged in January and February, and Plaintiff cites a specific message dated January 23, 2024 in which Plaintiff alleges Covacevich of TFC asked Plaintiff's representative Gonzalez about a particular shipment of cherries that Ramirez had told TFC's

Covacevich was being packed and shipped. (FAC ¶ 21 and Exh. 5.) The What's App messages attached to the FAC are in Spanish without a translation. Plaintiff alleges there were "multiple occasions" "before, during and after" the cherries shipped in which Plaintiff's representative Gonzalez and Plaintiff's general manager de Arce "referred to" Ramirez as an agent or employee of TFC to TFC's Covacevich "and other agents of TFC" which TFC never corrected. (FAC ¶ 22.)

In the remainder of this cause of action, Plaintiff alleges that TFC held Ramirez out as TFC's employee or agent authorized to act for TFC without any specific facts (FAC ¶¶ 50, 51), that TFC made the "knowing false representations" to induce Plaintiff to ship the cherries to TFC (FAC ¶ 52), that TFC knew the representations were false when made or made the representations with reckless disregard for their truth or falsity (FAC ¶ 53), and that as a direct result Plaintiff has been suffered damages of over $445,000.

These allegations suggest the deceit consists of fraudulent inducement for Plaintiff to enter into the agreement to sell and ship the cherries to TFG based on a misrepresentation (or concealment or nondisclosure) regarding the relationship between Ramirez and GPS to TFC, rather than promissory fraud. (See in particular FAC ¶ 52 [alleging TFC made false representations " to induce Plaintiff . . . to enter into the engagement" described in the FAC of shipping fruit to TFC].) The facts alleged in the FAC may suggest that Plaintiff has some basis for alleging deceit based on a promise made without intent to perform when made but given the allegation regarding the false statements inducing Plaintiff to enter into the shipment arrangement, the allegations indicate Plaintiff is alleging a different form of deceit.

2. Lack of Specificity in the Allegations

The FAC does not clearly include any allegation connecting TFC's representative's visits to the fruit packing plant in Chile (Exh. 4) and affirmative misrepresentations made to Plaintiff about Ramirez and GPS and their relationship to TFC, or any failure to correct Plaintiff's understanding about Ramirez and GPS being agents or employees of TFC. Plaintiff does not clearly allege that the What's App messages (Exh. 5) contain any specific affirmative representations by Covacevich on behalf of TFC that Ramirez was TFC's agent, employee or representative. It is not clear whether Plaintiff is alleging the reference in the What's App message of January 23, 2024 to the cherry shipment Ramirez told Covacevich about can be so construed; the FAC does not clearly and specifically allege that Covacevich referred to Ramirez as TFC's agent in the January 23, 2024 What's App message or allege facts showing that the circumstances discussed in the January 23, 2024 regarding the packing and shipping signified that Ramirez was acting as TFC's agent based on the fact Ramirez was conveying information about the shipment. (FAC ¶ 21.)

Plaintiff never clearly alleges that TFC's representations regarding Ramirez's and GPS' relationship with TFC were false, or perhaps that TFC at least took the position with Plaintiff after the cherries were shipped and not paid for that Ramirez and GPS are not TFC's agents or employees. Whichever may be the fact Plaintiff intends to assert, the FAC, as pled, only makes such allegations by implication, stating somewhat obliquely that TFC's agents failed to "correct such reference," that TFC held out Ramirez and GPS out as an employee or agent of TFC, and that it made "these knowing false representations" to induce Plaintiff to ship the fruit. (FAC ¶¶ 22, 49, 52.)

The Court agrees that the allegations of paragraph 22 also lack specificity, in that Plaintiff does not allege (a) any specific dates or specific time frames ("before, during and after" being essentially unlimited in time) in which Gonzalez and de Arce made such references to Ramirez as TFC's agent or employee "on multiple occasions", (b) the specifics of any communication with Covacevich in which the references to Ramirez as a TFC agent or employee were made by Plaintiff's Gonzales and de Arce that Plaintiff contends Covacevich did not correct (other than perhaps the January 23, 2024 What's App message which is deficient for the reasons stated above), (c) the identity of the "other agents," including any names, titles or job functions or descriptions to support their authority to act for TFC, and (d) the manner in which the references were made (orally by telephone or in person, by email, by text, or by some other writing) by Gonzalez and de Arce to Covacevich or "other agents" of TFC.

Though deficient for the reasons stated, paragraphs 20 through 22 have the most specific factual allegations regarding the intentional misrepresentations (or concealments or nondisclosures) by TFC on which the seventh cause of action is founded. Plaintiff argues that less specificity is required to plead a fraud claim " 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." ' (Italics added; citations omitted.)" (*Wald v. TruSpeed Motorcars, LLC* (2010) 184 Cal.App.4th 378, 394.) The allegations that lack specificity, however, are not facts that TFC would necessarily have full information about. Facts regarding <u>when</u> either TFC affirmatively represented Ramirez was its agent or employee or Plaintiff's representatives made references to Ramirez as TFC's agent or employee that were not corrected, the <u>manner</u> in which the communications were made and <u>to whom</u> would presumably be more within Plaintiff's knowledge, either as the party to whom the affirmative misrepresentations were made or as the party who referred to Ramirez as TFC's employee or agent and the references were not corrected or Ramirez's status not disclosed in response.

The general demurrer to the seventh cause of action is **sustained, with leave to amend.**

C. <u>Eighth Cause of Action</u>

"The tort of negligent misrepresentation does not require scienter or intent to defraud. [Citation omitted.] It encompasses '[t]he assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true' [citation omitted], and '[t]he positive assertion, in a manner not warranted by the information of the person making it, of that which is not true, though he believes it to be true' [citations omitted])." (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173-174 [quoting in part *Lazar, supra,* 12 Cal.4th at 638].) California does not recognize a cause of action for negligent misrepresentation based on a false promise. (*Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 331; *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.Pp.4th 153, 159.)

1. <u>Lack of Specificity</u>

This cause of action is founded on the same allegations regarding false representations (or concealment or nondisclosure) in paragraphs 20-22 which the Court found deficient for the reasons stated at length above. (FAC ¶¶ 56, 57.) Plaintiff repeats the general allegations of paragraph 49 in paragraph 58 that TFC held out Ramirez as TFC's agent or employee with authority to act for TFC. Plaintiff alleges TFC made the "false representations without reasonable grounds for believe them to be true in order to induce Plaintiff to ship valuable fruit to TFC." (FAC ¶ 61.) Without specific foundational allegations as to the false representations (or instances of concealment or nondisclosure), this cause of action also fails to allege the negligent misrepresentation claim as required by the specificity standards of the case law.

2. Economic Loss Rule

TFC also argues the negligent misrepresentation cause of action is barred by the economic loss rule. TFC relies on mostly federal cases, but cites *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979 and *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828. "The economic loss rule provides that, '[i]n general, there is no recovery in tort for negligently inflicted "purely economic losses," meaning financial harm unaccompanied by physical or property damage.' [Citation omitted.] For claims arising from alleged product defects, '[e]conomic loss consists of []damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property . . . .[]' [Citation, internal quotation marks omitted.]" (*Dhital, supra,* 84 Cal.App.5th at 837.)

The California Supreme Court recently addressed the economic loss rule in *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1. The Court explained that the economic loss rule is a "specific application" of the "independent tort principle" doctrine differentiating between contract and tort obligations, which it describes in exhaustive detail. (*Rattagan, supra,* 17 Cal.5th at 37.) "[T]ort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Id.* at 20-21.) "[T]o be held liable in tort, a defendant must commit a tort. If all the defendant has allegedly done is violate the terms of the parties' contract, depriving the plaintiff of the benefits the contract ensures, the defendant's liability is limited by the contract. Broader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties." (*Id.* at 37.)

Rattagan holds claims grounded in fraudulent concealment are not barred by the economic loss rule, to the extent the concealment violates an independent legal duty and is not based solely on a breach of the contract terms. (*Rattagan, supra,* 17 Cal.5th at 30-38 [explaining the *Robinson Helicopter* decision] and 42-45 [claims based on fraudulent concealment and affirmative misrepresentations not barred].) The Court in *Dhital* addressed a claim for fraudulent inducement, and the Court held the complaint stated the fraud cause of action in that case, at least at the pleading stage. (*Dhital, supra,* 84 Cal.App.5th at 833, 844-845.) "In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), <u>because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to</u>." (*Id.* at 841 [emphasis added].) (*See also Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 923-924 ["Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from—or are not independent of—the parties' underlying contracts. [Citations omitted.]" (Emphasis added.)].)

Plaintiff's allegations may be construed as an attempt to allege negligent misrepresentation separate from the performance or breach of the parties' contract and instead that were made to induce Plaintiff to enter into the contract, violating a legal duty the preceded and was independent of performance under the contract for the sale and shipment of the cherries. Based on *Robinson Helicopter, Sheen, Dhital,* and *Rattagan*, the economic loss rule does not <u>necessarily</u> bar the negligent misrepresentation claim Plaintiff attempts to allege here. (*See Rattagan, supra,* 17 Cal.5th at 38, 40 ["[F]rom a policy standpoint, there is no logical reason to distinguish among various species of actionable fraud committed while otherwise performing a contract, assuming the tort elements can be established independently of the contractual rights and obligations . . . ."].)

This conclusion is also consistent with two of the federal cases cited by TFC. In *Crystal Springs Upland Sch. v. Fieldturf USA, Inc*. (N.D. Cal. 2016) 219 F. Supp. 3d 962, the Court explained that "District courts in this circuit have applied *Robinson Helicopter* <u>on a case-by-case basis to decide whether negligent misrepresentation claims are barred by the economic loss rule</u>," citing among other decisions "*Bret Harte Union*, 2016 U.S. Dist. LEXIS 83295, 2016 WL 3519294, at **3-6 (collecting cases and <u>holding that claims for negligent misrepresentation that allege contract formation was tortiously induced are per se permissible</u>)." (*Id.* at 969 [emphasis added].) (*See Bret Harte Union High Sch. Dist. v. Fieldturf, USA, Inc.* (E.D. Cal. Jun 27, 2016), Case No. 16-cv-00371-DAD-SMS, 2016 U.S. Dist. LEXIS 83295, *1 at *16 ["Here, plaintiff's breach of contract claim alleges defendants failed to make good on their warranty when they failed to replace the field, <u>whereas the negligent misrepresentation claim essentially alleges that plaintiff would not have entered into this contract absent alleged defendants' misrepresentations</u>. This negligent misrepresentation claim sounds more in deceit/fraud than it does in negligence. As such, the court is not persuaded that plaintiff's negligent misrepresentation must be dismissed as it is pled." (Emphasis added.)]].) The Court is not persuaded by the other federal trial level decisions cited by defendant on the economic loss rule to the extent they reach a different result from the decision in *Bret Hart*, which the Court finds to be more consistent with the governing law in the California decisions cited above.

The general demurrer to the eighth cause of action is **sustained, with leave to amend.**

13. 9:00 AM CASE NUMBER: C25-02393
CASE NAME: TOM SPIES VS. IRA HARRIS
HEARING IN RE: APPLICATION FOR PRELIMINARY INJUNCTION
FILED BY: SPIES, TOM
<u>*TENTATIVE RULING:*</u>

Plaintiffs Tom and Brenda Spies' motion for a preliminary injunction is **<u>continued</u>** to February 11, 2026.

The parties may file and serve a supplemental brief no later than February 2, 2026. The briefs shall be no more than 10 pages double spaced. Where possible the parties should provide citations to relevant statutes or case law.

The Court requests supplemental briefing on the following issues: